

Beyond the Front Page: U.S. Supreme Court Media Coverage in the Digital Age

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Abstract

Americans rely on the media to learn about the United States Supreme Court. Historically, coverage was concentrated among a small set of major newspapers that regularly reported on high-profile decisions. The expansion of digital platforms and the Court's decision to livestream oral arguments at the start of the COVID-19 pandemic created new opportunities for coverage, but it is unclear whether these changes increased overall media attention to the Court. Using new data tracking how often Supreme Court decisions and oral arguments appear in print and broadcast-affiliated outlets, we show that the volume of coverage has declined in traditional newspapers but expanded (unevenly) across other outlets. These patterns challenge assumptions about stable and centralized Supreme Court coverage and highlight the need for scholars to account for changing levels of media attention when studying public responses to the Court.

Because U.S. Supreme Court justices prohibit cameras in their courtroom and rarely communicate directly with the public about their decisions, most Americans do not learn about the Court's work firsthand (Zilis 2015). Instead, they rely on the news media for coverage, and that coverage plays a central role in shaping popular perceptions of the Court (Meyer 2021). Historically, media coverage of the Court has been limited, with only a few major print outlets reporting on the Court at all; those outlets typically discussed a small number of high-salience decisions, and their stories often presented a narrow, apolitical, and legal view of the Court's work (Vining and Marcin 2014). This style of reporting, in turn, reinforced public support for the Court's authority to make consequential decisions (Johnston and Bartels 2010). Accordingly, the public saw a particular, limited view of the Supreme Court's work, and that view encouraged them to support the Court and follow its rulings. But a recent combination of media diversification and broader access to the Court's proceedings is changing what gets covered, how, and where (Houston, Johnson and Ringsmuth 2023). These changes increase the likelihood the public encounters different aspects of the Court's work -- lower-salience cases, ideological divisions between justices, and the back-and-forth of working through important legal decisions -- and could fundamentally alter Americans' understanding of the Court's position in American politics.

Unlike other political institutions, whose legitimacy stems from popular elections, the Supreme Court's legitimacy is built on popular belief that it has the authority to make the decisions that it does (Johnston and Bartels 2010), and that legitimacy is shaped by the public's knowledge and perceptions of the Court and its activities (Zilis 2015). Consequently, understanding the nature of the Court's media coverage is crucial for understanding how people react to the institution and the decisions its justices make. Scholars traditionally used print media coverage of the Court's decisions in major national print outlets—first the *New York Times*, and later the *Washington Post*, *Los Angeles Times*, and *Chicago Tribune*—to study this relationship (Collins and Cooper 2012).

The distinctive nature of Court reporting, characterized by an access hierarchy that favors certain outlets while making coverage difficult and costly for others,¹ and the Court's reluctance to adapt to a twenty-four-hour news cycle (Houston and Ringsmuth 2024), shaped how scholars approached the topic. The similarity of coverage across outlets made relying on these sources a reasonable research choice for decades. Yet the move from page-restricted print media to digital platforms with unlimited space and rolling deadlines (Shearer 2021), as well as the Court's decision to expand access to its processes in 2020 (Houston, Johnson and Ringsmuth 2023), suggests this approach needs re-evaluation. **If the media environment is evolving, and that changing environment in turn affects where people obtain news about the Court and what they learn about it, then scholars need to take its variety into account when studying the relationship between the public and the Court.** That is, they need to consider where individuals get their information (Johnston and Bartels 2010), what cases and processes get covered (Black et al. 2024), how much coverage different venues generate (Truscott 2024), and how that coverage presents the Court to the public (Boston and Krewson 2025).

In this paper, we take a first step toward understanding the new media landscape by investigating whether Supreme Court coverage actually *is* undergoing measurable change. To do this, we examine the quantity and distribution of coverage across print and broadcast outlets' physical and online coverage. Using updated data on both oral argument and decision coverage, we provide a descriptive, over-time account of the quantity and distribution of Supreme Court coverage across print and broadcast-affiliated platforms. We trace shifts in the parts of the Court's process that get covered, from the era of printed opinions and restricted access to the digital and better accessed media environment that emerged during the COVID-19 pandemic. Our analysis reveals the major national print outlets on which scholars have traditionally relied have steadily reduced their coverage of decisions since the 1970s, with three of these so-called "big four" outlets reaching

all-time coverage lows by 2021. But in that same period, other print and broadcast-affiliated outlets started covering the Court from different angles, including paying more attention to oral arguments. While we do not assess framing or audience exposure directly, our findings add to a growing literature that suggests coverage patterns are changing in meaningful ways (Boston and Krewson 2025; Hitt and Searles 2018). Given recent conversations about people's shifting feelings of judicial legitimacy during the Court's rightward turn (Gibson 2024), acknowledging these informational changes and incorporating them into scholars' understanding of judicial legitimacy is increasingly important. We offer scholars evidence of the need to make that change.

Court Coverage Beyond the Big Four

The transition from print to digital media fundamentally reshaped U.S. Supreme Court coverage. For much of the twentieth century, traditional print publications such as the *New York Times*, *Washington Post*, *Chicago Tribune*, and *Los Angeles Times* provided the public with primary analyses on the Court's decisions and arguments (Vining and Marcin 2014).² These major national outlets employed specialized legal beat reporters who had Court-granted access, which they used to explain the institution's procedures, and translate its complex work into accessible, if often legalistic, language for public consumption (Davis 2017). While traditional broadcast media, specifically radio and the three original major television networks, offered brief recaps of the Court's decisions the day they came down, the in-depth discussions usually appeared in the following day's print coverage in those outlets, and that coverage served as the true starting point of public conversation (Collins and Cooper 2012). Traditional print outlets thus played a central role in shaping public understanding of the judiciary. Their coverage was viewed as authoritative, and it ultimately formed the foundation for popular and scholarly interpretations of the Court's role in American governance (Johnston and Bartels 2010).

The print-focused model began to shift in the late twentieth and early twenty-first centuries,

as traditional media began departing from established journalistic routines. Print and broadcast outlets alike launched web versions of their publications to meet the needs of a digitally engaged audience (Levy and Nielsen 2010), offering continuous updates, faster reporting, and access to source documents such as opinions and oral argument transcripts (Houston, Johnson and Ringsmuth 2023).³ While most Americans did not read the opinions themselves, they followed the real-time expert analysis published alongside those documents to understand the Court's work (Zilis 2015). These digital platforms also allowed for more dynamic interaction between the public and reporters through comment sections, social media threads, live blogs, and multimedia explainers (Houston and Johnson 2023; Sorenson, Houston, and Savage 2024). In this new environment, audiences not only read about the Court but also engaged with conversations about it.

Traditional print and broadcast-affiliated media's digital shift also opened the door for a wider range of outlets to consistently cover the Court. In the pre-digitization era, outlets without hard passes faced major hurdles in accessing real-time information. They could send reporters to Washington, D.C. and hope to secure a day pass on the right day, rely on Associated Press summaries, or publish delayed post-decision commentary. But with credentialed outlets posting source documents online, outlets lacking physical access could quickly obtain documents, audio, and context, and provide timely updated and deeper coverage, too.⁴ This shift did not just increase the amount of coverage, either; research suggests it also changed its tone. Many digital-first or non-traditional outlets departed from the deferential tone typically found in traditional print and broadcast-affiliated coverage, and instead approached the Court as a political institution, framing justices as political actors and decisions as policy outcomes with winners and losers (Hitt and Searles 2018). Traditional print outlets also began using political language to discuss the Court (Boston and Krewson 2025), though their daily coverage still used traditional legalistic frames to discuss decisions (Lithwick 2014).

By 2020, the change was unmistakable. According to Pew Research, by the COVID-19 pandemic, 58% of Americans preferred to receive news digitally, while only 5% still favored print media (Shearer 2021). Even more striking, 82% reported getting at least some of their news from a digital device, whether a phone, tablet, or computer. We suspect this transformation, which we break down in Table 1, signals more than just a change in format; it suggests that Americans can now encounter the Court through a wider range of outlets and perspectives. No longer constrained by physical access or print and broadcast deadlines, these outlets can provide more frequent and immediate coverage of the Court, giving the public new opportunities to follow its work.

Table 1: Examples of Different Media Outlets

	Example
Traditional Print to Digital Media	<i>Chicago Tribune</i> newspaper → chicagotribune.com <i>New York Times</i> newspaper → nytimes.com
Traditional Broadcast to Digital Media	CBS News → cbsnews.com National Public Radio → npr.org
"New" Digital Media	News media apps (Apple News, Google News) Web only news media (<i>Vox</i> , <i>Slate</i> , <i>The Hill</i>) News media social media sites (Instagram, Facebook) News podcasts (Slate Political Gabfest, NPR Politics Podcast)

Hear Ye, Stream Ye: The Supreme Court Goes for Accessibility

Even as the media environment expanded, the Supreme Court remained largely resistant to public access, earning the title of the least accessible institution in American government. The justices have long resisted efforts to open their work to the public (Black et al. 2024), rarely write opinions with lay audiences in mind (Black et al. 2016), routinely decline to explain their reasoning beyond the official written opinion (Zilis 2015), and sometimes fail to even publish an opinion. Most of their work is done out of the public eye and the justices prefer it that way.

Beyond the justices' secrecy, their refusal to preemptively schedule opinion releases or tell journalists when important opinions were coming made covering the accessible parts of the Court's process a logistical nightmare (Houston and Ringsmuth 2024). When journalists went to the Court for oral argument and opinion releases, the Court only set aside thirty-six seats for them in a room of over 400, and the ban on bringing electronic devices into the courtroom made it difficult to fully capture the proceedings (Carter 2012). The Court released paper copies of opinions the day the justices delivered them, but they only offered delayed audio recordings and transcripts for reconstructing oral argument, which made real-time reporting of the arguments nearly impossible (Rosenberg and Feldman 2008). Most media outlets consequently focused on final decisions, and in doing so, left discussions of oral arguments to a niche group of legal reporters, despite its obvious importance to the Court's decision-making process (Clark, Lax, and Rice 2015).

But, in response to the COVID-19 pandemic, the Supreme Court began livestreaming its oral arguments in May 2020 (Houston, Johnson and Ringsmuth 2023). With that decision, the Court opened a new window into its inner workings, granting journalists and the public unprecedented access to a once-restricted part of its process. Livestreaming removed long-standing barriers to access, and reporters could now quote justices in real time, provide immediate expert commentary,

and construct more nuanced stories about judicial reasoning. Rather than reacting to final rulings alone, journalists could track the development of legal arguments as they unfolded and tell a fuller tale of the Court's work.⁵ And, importantly, livestreaming allowed more outlets to provide that kind of coverage, too.

Critically, livestreaming gave both journalists and the public greater access to oral arguments, which significantly shaped the stories people encountered about the Court. Oral arguments reveal the justices' tone, priorities, ideological leanings, and legal reasoning—all insights that are often less apparent in final opinions (Black et al. 2024). For the first time, people could hear the Court at work, with all its legal and political dynamics, and that information was disseminated across a wide range of outlets. Consequently, livestreaming changed not only who could cover the Court, but also which aspects of its work received attention, potentially influencing how the public understands the institution itself (Ramirez 2008). Even if most Americans do not listen to arguments live, they are increasingly exposed to the Court through this new stream-informed coverage (Houston, Johnson and Ringsmuth 2023).⁶ We suspect the traditional print and broadcast-affiliated media's shift to digital platforms, combined with the U.S. Supreme Court's increased accessibility of oral arguments, not only provided more diverse reporting on the Court, but also led to an expansion of the parts of the Court's process covered by those outlets.

The Transformation of Supreme Court Media Coverage

To examine shifts in the Court's media landscape, we take a two-pronged approach. First, we collected data on decision coverage between the 2015 and 2021 terms in the print editions of four major, geographically diverse national newspapers: the *New York Times*, *Washington Post*, *Chicago Tribune*, and *Los Angeles Times*.⁷ Reporters for the *New York Times*, *Washington Post*, and *Los Angeles Times* hold Supreme Court hard passes, which grant them year-round access to the Court's building and reserved seating in the press section during oral arguments. This level of access

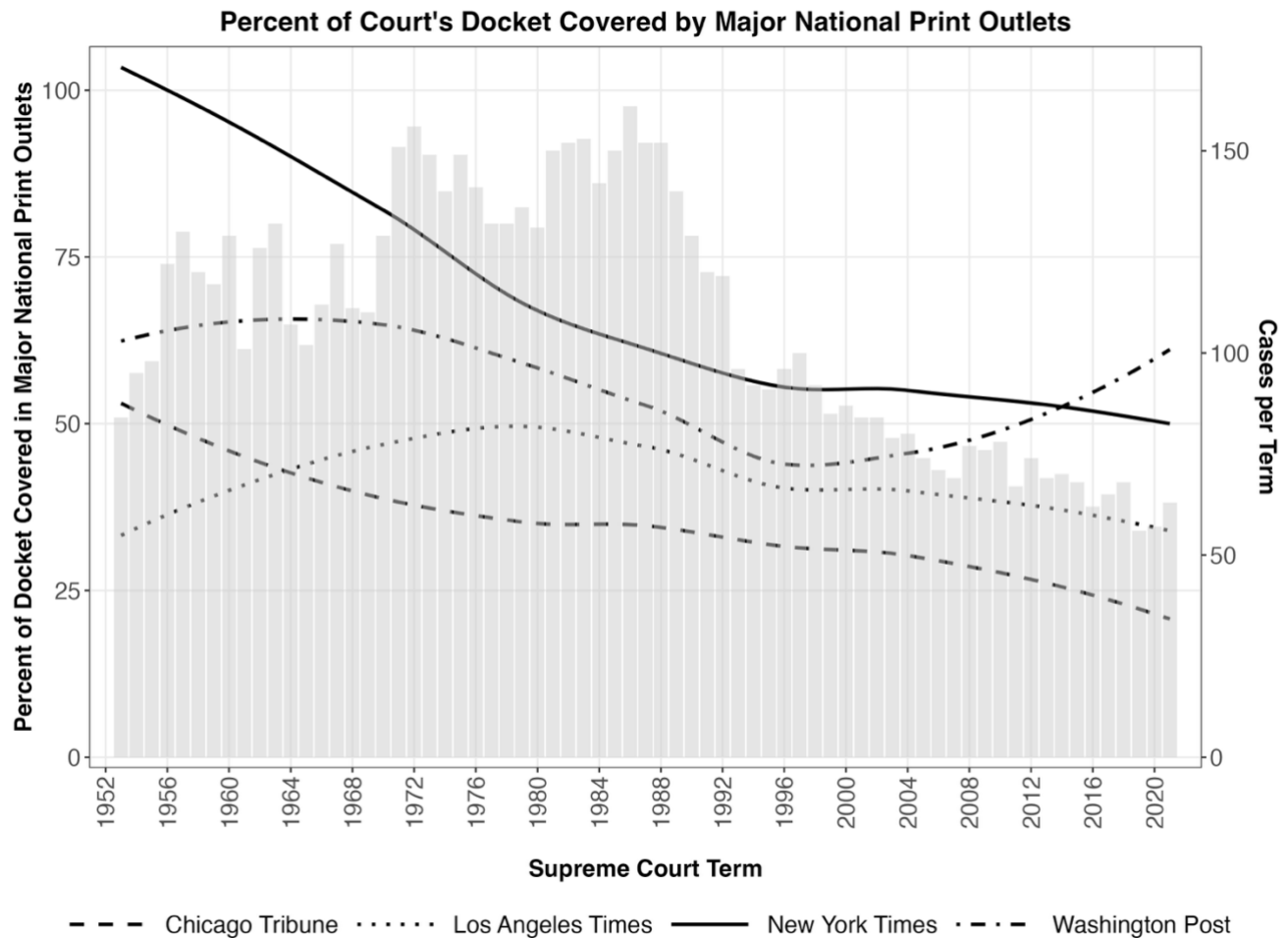
allows for consistent, on-the-ground reporting of the Court's procedural activities and institutional developments and places these journalists among the most knowledgeable and engaged regarding Supreme Court coverage. In contrast, the *Chicago Tribune* held a hard pass until 2011, after which its editors began relying on AP Wire content for Court reporting. We include it in our analysis to reflect how most regional newspapers now cover the Court.

Second, we examine how different print and broadcast outlets cover different parts of the Court's process on their digital platforms, with a specific focus on oral argument and decision coverage. For this part of the analysis, we draw on data from Houston, Johnson, and Ringsmuth's (2023) study of online print and online broadcast-affiliated coverage of oral arguments. For print outlets, they examined online stories from the ten highest-circulation weekday newspapers: the four major national outlets noted above, along with *USA Today*, the *Wall Street Journal*, *New York Post*, *Minneapolis Star Tribune*, *Boston Globe*, and *Newsday*. For broadcast outlets, they analyzed stories published on the websites of the eight most-watched television networks: the three original major broadcast outlets (NBC News, CBS News, and ABC News) and five others (Fox News, PBS, MSNBC, CNN, and Fox Business).⁸

Analysis

We first examine how the four major print newspapers' coverage of the Supreme Court's decisions changed over time, which we show in Figure 1. Figure 1 displays two important pieces of information. First, it shows the percentage of the Court's docket that received decision coverage (left y-axis) in the *New York Times* (solid line), *Washington Post* (dot-dash line), *Chicago Tribune* (dashed line), and *Los Angeles Times* (dotted line) from 1953 to 2021.⁹ Second, it shows the size of the Court's docket each term (grey bars, count on the right y-axis), which allows us to examine the share of coverage in light of the docket size. We use share of the docket as our primary metric to allow meaningful comparisons over time; as Figure 1 shows, the Court's docket has declined

substantially over time for a multitude of reasons (see Lane 2022), so measuring the percentage of cases covered each year allows us to assess how selective newspapers have been in their editorial focus given this change.

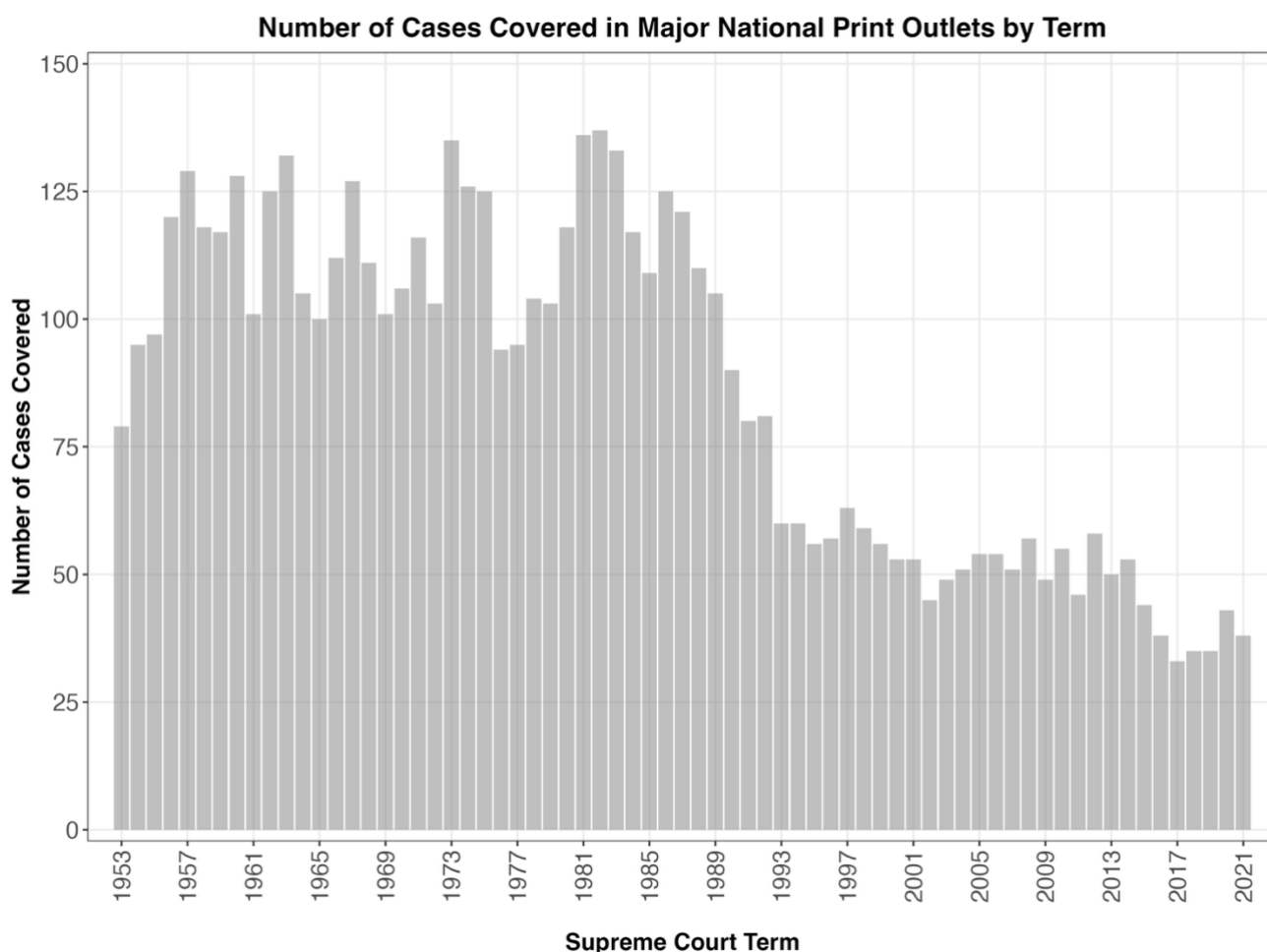


The left y-axis shows the percentage of decisions each term that received newspaper print coverage in the *Chicago Tribune* (dashed line), *Los Angeles Times* (dotted line), *New York Times* (solid line), *Washington Post* (dot-dashed line). All lines are loess trend curves of the data. The right y-axis shows the total number of cases the Court reviewed each term, represented by light gray bars.

As Figure 1 shows, the Court was hearing between 140 to 150 cases per term in the 1970s and 1980s. During that period, most of the outlets covered nearly half of the Court's decisions each term.¹⁰ When the Court's docket started decreasing in the late 1980s, the four major newspapers appeared to handle the change differently. The *Washington Post* increased the proportion of the

docket covered to nearly 60%, while decision coverage in the *New York Times* remained consistent at 40 to 50% of the Court's docket, and coverage the *Los Angeles Times* and *Chicago Tribune* fell to all-time lows. Importantly, however, given the decrease in the Court's docket, even an uptick in percentage covered still pales in comparison to the number of decisions receiving coverage a few decades earlier.

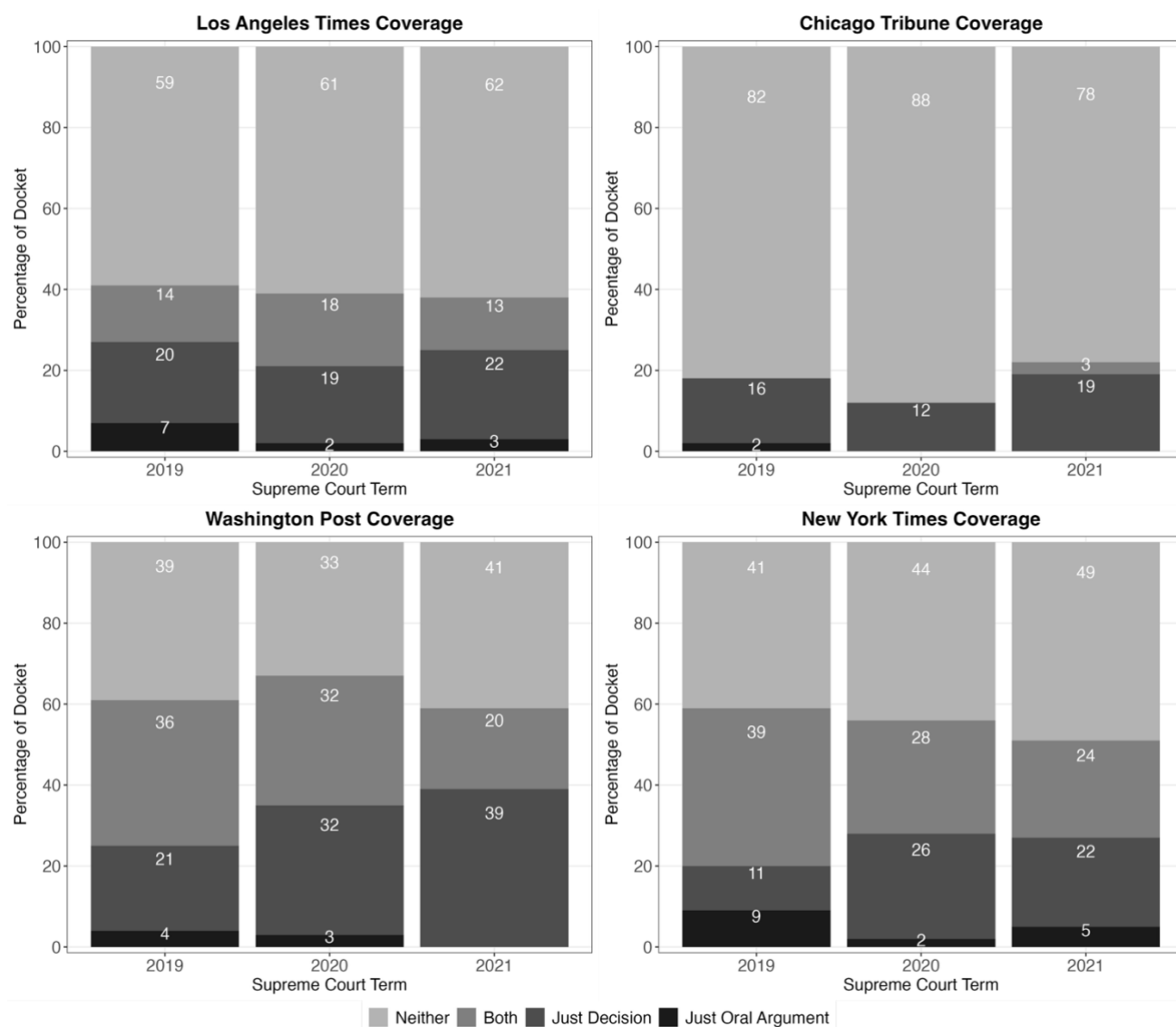
Taking these findings into consideration, the trends point to an overall *decrease* in the number of cases covered each term. As we show in Figure 2, which displays the number of cases covered by one of these four outlets every term, major national print outlets cover between 30 and 50 cases a term in the current era, compared to around 100 cases in the larger docket era. It appears that most outlets became more selective about their coverage as the docket decreased in size.



The y-axis shows the total number of decisions each term that received newspaper print coverage in the *New York Times*, *Washington Post*, *Chicago Tribune*, and *Los Angeles Times*.

Building on our analysis of print newspaper decision coverage, we next expand both the stage of the Court's process under analysis (decisions *and* oral arguments) and the format of media coverage (print *and* online stories). Specifically, we examine how major national outlets—the *New York Times*, *Washington Post*, *Los Angeles Times*, and *Chicago Tribune*—covered oral arguments and decisions in their print publications and online stories. Figure 3 illustrates coverage at each stage of the Court's decision-making process — just oral argument (black), just the decision (dark grey), both (lighter grey), or no coverage (light grey) — across the four major print outlets between the 2019 and 2021 terms, representing the period before and after the Court's accessibility shift.

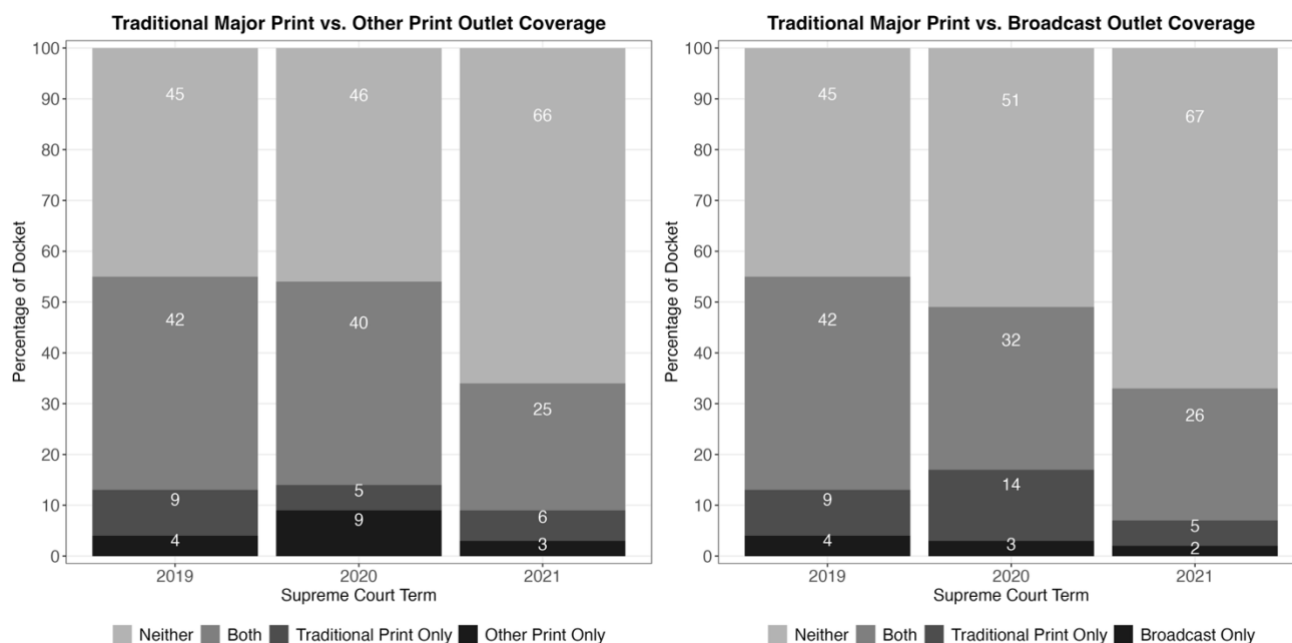
Figure 3 suggests that despite the Court becoming more accessible in 2020 through live audio streaming, major news outlets did not increase their attention to oral argument. Before the shift, the *New York Times*, *Washington Post*, and *Los Angeles Times* regularly reported on oral arguments. For example, the *Los Angeles Times* discussed 21% of the Court's orally argued cases the day they happened, the *Post* discussed 40%, and the *New York Times* discussed 48%. After the introduction of live audio, however, coverage of oral argument declined to 16%, 20%, and 29% of the Court's 2021 docket, respectively, with the *Post* and *New York Times*'s differences being significantly smaller.¹¹ Interestingly, their focuses went in different directions, with the *Post* spending significantly more time on decisions than it had in the past (from 21% to 39%), and both *Times* outlets dedicating approximately equal attention to the Court. Despite our assumptions, the data suggest easier access did not increase coverage of oral argument among the major national print outlets that already had access to the Court's proceedings.



Coverage of Supreme Court oral argument and decisions in the *Los Angeles Times* (top left), *Chicago Tribune* (top right), *Washington Post* (bottom left), and *New York Times* (bottom right), broken down by term. Different colors indicate different levels of coverage, from only covering oral argument (black), to only covering decisions (darkest grey), to covering both oral argument and decisions (lighter grey), to no coverage (lightest grey). Values represent percent of docket falling into that category.

With that said, some other outlets *are* taking advantage of the Court's increased accessibility and providing at least some coverage of oral arguments. We now turn to broadcast-affiliated outlets' online print stories, focusing exclusively on their coverage of oral arguments, which we show in Figure 4. On the left side of Figure 4, we compare how often the four traditionally used major

national print outlets and other large print outlets (*USA Today*, *Wall Street Journal*, *New York Post*, *Minneapolis Star Tribune*, *Boston Globe*, and *Newsday*) covered oral arguments in online content between the 2019 and 2021 terms. Figure 4 ranges from cases in which neither outlet type covered the argument (light gray), to both types covering it (darker gray), to only the traditional major national outlets providing coverage (even darker gray), to only the other newspaper outlets covering it (black). Overall, our results suggest a strong consensus on which oral arguments are considered newsworthy: the big four major print outlets and other print outlets agreed between 85% and 90% of the time. This level of agreement increases the likelihood that the public encounters information about many of the same cases. But disagreement in 10% to 15% of cases still matters. It means that depending on the outlet, people may be learning about different cases, and could be doing so through potentially politicized lenses.¹² In 2020, for example, as the Court expanded its accessibility, other print outlets actually covered *more* oral arguments than their traditionally-used counterparts, highlighting how different outlets may be more responsive to shifts in institutional transparency.



Comparison of breadth of Supreme Court oral argument coverage. The left side compares print coverage in the four major print outlets against those in other top print outlets. The right side compares coverage in the four major print outlets against coverage in broadcast outlets. Different colors indicate different levels of coverage, from coverage exclusively in other outlets (black), to coverage exclusively in traditional major print outlets (darkest grey), to coverage in both outlet types (light grey), to no coverage (lightest grey).

The right side of Figure 4 compares the coverage of Supreme Court oral arguments by the four major national print outlets with that of the eight most-watched broadcast networks (NBC News, CBS News, ABC News, Fox News, PBS, MSNBC, CNN, and Fox Business). Once again, our findings indicate a broad consensus about which oral arguments are newsworthy: both types of outlets covered the same arguments between 80% and 90% of the time. This suggests that, regardless of whether Americans consume news by browsing print newspapers online or broadcast outlets online, they are likely to encounter coverage of the same cases. Unlike the pattern we observed with non-traditional print media, however, there was no noticeable increase in coverage following the Court's accessibility changes in 2020. This may be because five of the eight broadcast networks were already hard pass holders, giving them access to oral arguments even before the

reforms, thus reducing the impact of the expanded public availability of live audio.

Despite the general agreement in which cases are covered between major print, other print outlets, and broadcast-affiliated networks, it is worth noting there are decreases in coverage regardless of the source. That is, the lightest gray bars, which indicate that neither type of media outlet covered a case at oral argument, steadily increased over the three-term period. While this is not enough evidence to draw conclusions that all outlets are covering the Court less, we know from Figures 1 and 2 that major national print outlets have decreased their coverage. And if we look to other print outlets and broadcast outlets only in this abbreviated period, we see the outlets are not making up the difference by covering decisions or oral arguments. Even with increased access and broad digital presence, outlets are still covering the Court less than they used to. This could be a product of the Court's docket getting smaller and with it, the number of cases worth covering, but we suspect scholars will need a longer time trend to fully understand this dynamic.

Conclusion

Former Justice Stephen Breyer recently observed, "If you want a rule of law...you can't just talk to the judges and you can't just talk to the lawyers...It is the people in the towns, in the villages...they're the ones that have to be convinced that it is in their interest to follow decisions, even when those decisions affect them in a way they don't like, and when those decisions are wrong."¹³ His words underscore the importance of public understanding and engagement with the judiciary, especially in an era when information about the Court is increasingly shaped by the digital media environment. If legitimacy rests with the people, then the media pathways through which they come to know and interpret the Court are not just worth studying—they are essential.

Our goal was to examine how changes in accessibility and the media landscape influenced the amount of Supreme Court coverage. In pursuit of that goal, we offer a descriptive snapshot of the Court's evolving media environment by highlighting several changes in how and how often the

institution is covered. While our results suggest most major traditional print outlets are covering the Court less than they did in the 1980s, they also suggest other print and broadcast-affiliated outlets are using their digital platforms to report about the Court. We view this as a positive development. At a minimum, digitization and increased accessibility allows more outlets to cover the Court than ever before, and our analysis suggests many other print and broadcast outlets are covering the Court at multiple points in the process. Consequently, the public has more avenues for learning about the Court's work, and those avenues can give them a fuller picture of an institution that is typically shrouded in mystery and thus difficult to understand. Looking beyond informational sources, the proliferation of different outlets suggests people will also learn about the Court from different viewpoints, which allows them to see the Court in new, more technically correct ways than traditional, major national newspapers would typically allow.

Our analysis is intentionally descriptive. Rather than explaining why particular outlets adjusted their coverage or how these changes shape public opinion, our goal is to document the structural transformation of the Court's media environment. Establishing how much coverage exists, where it happens, and which parts of the Court's process receive attention is a necessary first step for research that seeks to evaluate shifts in framing, interpret the consequences of coverage for legitimacy, or assess how different media ecosystems construct narratives around the Court.

Our findings broadly suggest scholars must rethink how they use media coverage to study people's interactions with the Court. Today's media ecosystem is fragmented, personalized, and fast-moving. Yet many researchers still rely on print coverage in major national newspapers to infer public attention to the Court. Our analysis reveals that the media environments in which traditional print and broadcast-affiliated outlets work have changed in meaningful ways. These modern outlets are presenting the public with more and different information about the Court. This reality carries significant implications for how people learn about and perceive the Court, and it should inspire

new research on the connection between modern media and perceptions of judicial legitimacy, transparency, and fairness.

While our analysis offers an important first step toward understanding the modern relationship between people, the media, and the Court, our analysis is not without limitations. First, we do not examine the full scope of the exclusively digital platforms where people now access information about the Court, including social media, Court-focused blogs, websites, and podcasts. These platforms play an increasingly central role in shaping the public's media diet (Shearer 2021). Just as broadcast and print coverage vary in substance and style (Vining and Marcin 2014; Hitt and Searles 2018), digital-native outlets likely do the same. Relatedly, future research could also examine how commentary-driven media rely on, reinterpret, or selectively amplify traditional news coverage of the Court, potentially shaping public understanding. Many of these outlets lack traditional journalistic editorial oversight, which makes them wholly new sources worthy of study (Zilis and Wedeking 2022). The rise of these platforms invites scholars to revisit long-standing assumptions about how people, political institutions, and the media interact (e.g., Cook 2012).

Second, shifts in media coverage may also reflect changes in personnel, such as the transition from Linda Greenhouse to Adam Liptak at the *New York Times*. While we do not attribute long-term trends to individual reporters, changes in writing style, editorial emphasis, or newsroom priorities may contribute to broader patterns in how the Court is covered. Future research could explore how individual reporters and editorial leadership shape the tone, frequency, and focus of Supreme Court coverage over time.

Third, we do not assess how the public engages digitally with Court coverage across these platforms. Today, engagement, including likes, shares, and comments, often determines which stories rise to prominence and which are ignored (Guess 2021). This can result in selective exposure to certain narratives about the Court, shaping what people believe they know about it in unusual

ways (Houston and Johnson 2023; Truscott 2024). Understanding what stories gain traction and who interacts with them is a critical step toward mapping the public's "judicial media diet."

Finally, future research should also examine how ongoing consolidation of media ownership may further standardize or replicate Supreme Court coverage across outlets, potentially narrowing the range of distinct narratives available to the public. Ultimately, if the legitimacy of the Supreme Court depends on an informed public, then understanding how a consolidated but fragmented, fast-moving, and increasingly digital media environment constructs the stories people see about the Court is not just a scholarly exercise—it is essential to understanding the future of judicial authority in American democracy.

¹ The Supreme Court's Public Information Office grants "hard passes" to about 25 full-time Court reporters from different news organizations. They are guaranteed seating during oral argument and opinion announcement and have working space at the Court. The Court issues these passes to journalists from a combination of major (CNN) and niche (*Howe on the Court*) outlets. For more information, see the supplemental appendix.

² Astute readers will notice the omission of the *Wall Street Journal* from this part of our discussion. Historically, the *Journal* was a finance-focused paper, and it did not cover domestic politics as broadly or consistently as the outlets listed here (see, e.g., <https://tinyurl.com/2p8xn24m>). To be sure, the *Journal's* coverage has expanded in recent decades (Boston and Krewson 2025), and today it would be considered one of the major print-based outlets.

³ The Court also went digital in 2017 and began releasing documents on its website, see <https://tinyurl.com/yc3cu6dz>.

⁴ Consider outlets such as *The Hill*, *Slate*, or *Vox*, which do not hold hard passes but still provide regular Court coverage.

⁵ In other political contexts, live events tend to garner more coverage (Livingston and Bennett 2003). Television news managers prioritize live reporting, believing it creates a sense of immediacy and increases viewership.

⁶ Livestreaming also enables the public to listen directly to oral arguments, though real-time listeners remain a minority (Houston, Johnson and Ringsmuth 2023).

⁷ This follows work by Collins and Cooper (2012), who use these outlets to study case salience. During our data collection process, we also updated and extended their case salience measure. For more discussion of our data collection approach, see the supplemental appendix.

⁸ To identify coverage, Houston, Johnson and Ringsmuth (2023) searched the website of each of the eighteen sources using the keywords "Supreme Court argument" along with the case name, petitioner name, or respondent name (24). They focus their analysis on digital coverage on the day of oral argument.

⁹ Data from 1953-2014 come from Collins and Cooper (2012, 2016).

¹⁰ The *New York Times* reported on all the Court's cases in the early 1950s. The consistency of coverage and the loess trend curves lead to the *Times* crossing the one-hundred percent mark in Figure 1.

¹¹ All discussion of significance reflects $p < 0.05$ in a two-sided proportional z-test.

¹² To examine this further, we selected four media outlets, two print and two broadcast, that represent both sides of the political spectrum (*New York Times*, NBC, *Wall Street Journal*, and Fox) and plotted their coverage by issue area and decision direction, which we provide in the supplemental appendix. Results suggest the four outlets covered nearly all the same cases each term.

¹³ <https://tinyurl.com/mr2mmnf>

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DATA AVAILABILITY STATEMENT

Research documentation and data that support the findings of this study are openly available at the Harvard Dataverse at <https://doi.org/10.7910/DVN/PQ4P1M>

CONFLICTS OF INTEREST

The authors declare no ethical issues or conflicts of interest in this research.

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